

Procedural Fairness Considerations

VERSION 1.0	EFFECTIVE [REDACTED]	NEXT REVIEW [REDACTED]	OWNER [REDACTED]	APPROVED BY [REDACTED]
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Where a complaint expressly or implicitly alleges inappropriate conduct by a worker, the Complaint Manager, Incident Manager or investigator should have regard to the following procedural fairness steps. Procedural fairness applies to the overall process, not separately to each stage.

1. Before starting

- Identify whether any information to be relied on was provided in confidence, and if so, consider how confidentiality can be maintained consistently with affording procedural fairness to the worker; if that may be difficult, consult the person who provided the information and ask whether they wish the complaint to proceed.
- Identify whether the allegation relates to more than one worker, and whether the same or different steps apply to each.
- Consider who is the appropriate person to manage the complaint, and whether more than one person should share the role, to avoid conflicts of interest.
- Identify the training, policies, procedures and systems of work provided to the worker in the context in which the allegation arose, and determine an appropriate process.

2. Informing the worker

- Tell the worker the issue to be investigated and the allegation(s) against them — in writing where the matter or potential sanction is serious.
- Tell the worker how the matter will be investigated: who is conducting it, how long it is expected to take, and how it will be reported.
- Give adequate detail of each allegation — what the worker is alleged to have done or failed to do, when, and any evidence that tends to confirm it — and draw attention to any issue critical to the outcome that may not be obvious. Providing a summary of the information that may be relied on is usually sufficient; a document or recording may need to be made available depending on the allegation.
- Inform the worker of any potential sanction — formal (such as dismissal or a Code of Conduct investigation) or an adverse consequence of another kind (work restrictions, or a report that reflects adversely on performance) — and the considerations relevant to deciding it. It may be desirable to decide any sanction in a separate procedure.

3. A reasonable opportunity to respond

- Give the worker a reasonable opportunity to respond to the issue, the allegations and any possible sanction. What is reasonable depends on the circumstances — some matters can be dealt with in a discussion or a few days; others need longer.

- Let the worker choose how to respond — a meeting, a written submission, or a meeting with a support person (a colleague, family member, union official or lawyer). The worker may make more than one submission, and special measures (an interpreter, a separate location, an extension of time) may be required.

4. Deciding and recording

- Inform the worker in writing of the decision. Use a formal letter for an adverse decision that could distress the worker or affect their career; an email or a signed record may suffice otherwise, including where the decision is favourable.
- If a sanction is imposed (including an adverse finding on the personnel record), state its nature clearly and outline any right to challenge or review it.
- Conduct the investigation fairly and without bias, with an open mind, and consider whether any decision to impose a sanction should be made by someone other than the investigator.

5. Confidentiality

Information may have been received in confidence — a complainant, informant, witness or whistleblower may ask that their identity remain confidential. The Complaint Rules require that information provided in a complaint is kept confidential and only disclosed if required by law or otherwise appropriate. Procedural fairness may override confidentiality in whole or in part, depending on the circumstances, particularly where a sanction may be imposed. Confidentiality is more easily safeguarded where a complaint is classified as being about the quality of support rather than the conduct of an identified worker — so consider at the outset whether a worker is identified only incidentally. Where a worker's conduct is in question, it may be possible to give them the allegation and its details without disclosing the source. Look for ways to balance fairness and confidentiality, including separate preliminary discussions with each interested party.